



CHAPTER xxiii

An Act to authorise Round Oak Steel Works Limited to divert a level crossing confirmed by the Round Oak Steel Works (Level Crossings) Act 1948 to amend that Act and for other purposes.

[9th July 1959.]

WHEREAS Round Oak Steel Works Limited (hereinafter referred to as "the Company") are the owners of a private mineral railway (known as "the Pensnett Railway") and use the said railway as a means of communication between and for the transport of materials products and goods to and from their works known respectively as Round Oak Steel Works and Level Street Mills and situate in the urban district of Brierley Hill in the county of Stafford and in the county borough of Dudley:

And whereas the said railway crosses the road known as Level Street in the said urban district by means of two level crossings carrying separate branches of the said railway:

And whereas by the Round Oak Steel Works (Level Crossings) Act 1948 (hereinafter referred to as "the Act of 1948") the construction of the said level crossings was sanctioned and confirmed and the Company were empowered to use the same:

And whereas by the Act of 1948 the Company were empowered to maintain repair renew improve reconstruct or discontinue the said level crossings or either of them and certain duties and obligations with regard to the said level crossings were imposed upon them:

And whereas it is expedient that the Company should be authorised to divert in the manner provided by this Act the easterly level crossing described in the Act of 1948:

And whereas it is expedient that the provisions of the Act of 1948 relating to the warning and regulation of road traffic over the said level crossings should be amended as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas a plan and sections showing the line or situation and level of the work by this Act authorised together with a book of reference to the said plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands in or through which such work will be constructed have been deposited in the office of the Clerk of the Parliaments House of Lords and in the Private Bill Office of the House of Commons and with the clerk of the county council of the administrative county of Stafford and are hereinafter respectively referred to as the deposited plan the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short and
collective
titles.

1.—(1) This Act may be cited as the Round Oak Steel Works (Level Crossings) Act 1959.

(2) This Act and the Act of 1948 may be cited together as the Round Oak Steel Works (Level Crossings) Acts 1948 and 1959.

Incorporation
of
enactments.

2. The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof so far as the same are applicable for the purposes of and are not inconsistent with this Act are hereby incorporated with and form part of this Act.

Interpretation.

3. In this Act—

“the Act of 1948” means the Round Oak Steel Works (Level Crossings) Act 1948;

“the Company” means Round Oak Steel Works Limited; and

“the easterly level crossing” has the same meaning as in the Act of 1948.

Power to
divert level
crossing.

4.—(1) Subject to the provisions of this Act the Company may in the urban district of Brierley Hill in the line and situation and upon the lands delineated on the deposited plan and described in the deposited book of reference and according to the level shown on the deposited sections divert the easterly level crossing.

(2) The provisions of the Act of 1948 shall apply to the easterly level crossing as diverted under the powers of this Act as if for the references in the Act of 1948 to the said level crossing there were substituted references to that level crossing as so diverted.

5. In the construction of the diversion by this Act authorised the Company may deviate laterally from the line or situation thereof shown on the deposited plan to any extent not exceeding the limits of deviation shown on that plan and may deviate vertically from the level of that diversion shown on the deposited sections to any extent not exceeding five feet upwards or downwards.

Power to deviate.

6. For the purpose of constructing and maintaining the diversion by this Act authorised the Company may enter upon open break up and interfere with so much of the surface of Level Street in the urban district of Brierley Hill as is within the limits of deviation for that diversion but shall not purchase or acquire any part of the surface of that street.

Power to use surface of Level Street.

7. Section 3 (Confirmation and use of level crossings) of the Act of 1948 shall have effect as if—

Amendment of section 3 of Act of 1948.

(a) for paragraph (v) of subsection (4) of that section there were substituted the following paragraph:—

“(v) at or near each of the said level crossings and whether on the road or elsewhere the Company shall provide erect maintain and operate such barriers lights traffic signs and other means as the Minister may from time to time direct for warning and regulating the road traffic coming from either direction when a train or engine or wagon is passing or about to pass over such level crossing and may for the purpose of such provision erection or maintenance open or break up or otherwise interfere with the road”;

(b) the following subsections were added at the end of the said section 3:—

“(5) Any traffic sign provided in pursuance of a direction given under paragraph (v) of the last preceding subsection shall be deemed to be a traffic sign lawfully placed on or near a road in accordance with the provisions of section 48 of the Road Traffic Act 1930 and the direction may provide that the provisions of section 49 of the said Act of 1930 shall apply to that traffic sign:

Provided that nothing in this subsection shall impose on a highway authority any liability in respect of a traffic sign provided in pursuance of any such direction and in relation to any such traffic sign the said section 48 shall have effect as if for the reference in subsection (5) thereof to a highway authority there were substituted a reference to the Company.

(6) In and for the purposes of this section the expression 'traffic sign' has the same meaning as in the Road Traffic Act 1956".

For protection
of electricity
undertakers.

8. For the protection of the Central Electricity Generating Board and the Midlands Electricity Board (each of whom is hereinafter referred to as "the undertakers") the following provisions shall unless otherwise agreed in writing between the Company and the undertakers concerned apply and have effect:—

The provisions of Part II of and the Fourth Schedule to the Public Utilities Street Works Act 1950 shall extend and apply for regulating the relations between the Company and the undertakers as if—

(a) the diversion authorised by this Act; and

(b) any works executed under the powers conferred by paragraph (v) of subsection (4) of section 3 of the Act of 1948;

were substantial works required for the purposes of a transport undertaking within the meaning of the said Act of 1950 and executed in property held or used for the purposes of the undertaking.

Costs of Act.

9. All the costs charges and expenses preliminary to and of and incidental to the preparation of and the application for and the obtaining and passing of this Act shall be paid by the Company.

Table of Statutes referred to in this Act

Short title	Session and chapter
Railways Clauses Consolidation Act 1845 ..	8 & 9 Vict. c. 20.
Road Traffic Act 1930	20 & 21 Geo. 5. c. 43.
Round Oak Steel Works (Level Crossings) Act 1948	11 & 12 Geo. 6. c. xiii.
Public Utilities Street Works Act 1950	14 Geo. 6. c. 39.
Road Traffic Act 1956	4 & 5 Eliz. 2. c. 67.

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